

Joseph William D. Lee



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

John

*** Excerpts from the Minutes of the 32nd Regular Session of the 10th City Council of Valenzuela held on March 25, 2026 at 3:00 P.M. at the City Council's Session Hall, 3rd Floor, Legislative Building, Valenzuela City Hall, Karuhatan, Valenzuela City, Metropolitan Manila

ORDINANCE NO. 1340

Series of 2026

AN ORDINANCE PROVIDING FOR WORKSITE SAFETY, TRAFFIC MANAGEMENT, VEHICLE IDENTIFICATION, AND THE MANDATORY WEARING OF PROPER UNIFORM AND VISIBLE COMPANY/CONTRACTOR IDENTIFICATION CARDS BY PERSONNEL FOR TELECOMMUNICATIONS-RELATED WORKS CONDUCTED WITHIN VALENZUELA CITY, INCLUDING WORKS ON NATIONAL ROADS WITHIN ITS TERRITORIAL JURISDICTION, PROVIDING FOR ADMINISTRATIVE ENFORCEMENT AND PENALTIES, AND FOR OTHER PURPOSES.

Authored by : Coun. JOSEPH WILLIAM D. LEE and Coun. RICHARD C. ENRIQUEZ

WHEREAS, police power is primarily lodged in the State but is delegated by Congress to local government units pursuant to the general welfare clause, and ordinances must be reasonable and not inconsistent with national statutes or State policy;

WHEREAS, national law authorizes the DPWH to promulgate rules and regulations to regulate and control the use of and traffic on national roads and streets, and to temporarily close such roads when necessary in the public interest;

WHEREAS, telecommunications franchise granted by Congress commonly allow excavation and restoration works on public places, roads, highways, streets, sidewalks, and bridges with the prior approval of the DPWH or the local government unit concerned, as may be appropriate, and require restoration to standards set by DPWH or the LGU, with a ten (10)-day notice mechanism and the authority of DPWH or the LGU to repair at double expense upon failure to restore;

[Signature]

[Signature]

[Signature]

[Signature]

[Signature]



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

Page No. 2
Ordinance No. 1340
Series of 2026.

WHEREAS, inadequately protected work zones and lack of clear identification of vehicles and personnel engaged in telecommunications-related works create hazards to motorists and pedestrians, impede traffic, flow and hinder accountability.

NOW THEREFORE, be it **ORDAINED** as it is hereby **ORDAINED** by the 10th City Council of Valenzuela, in session duly assembled, the following:

SECTION 1. TITLE. This Ordinance shall be known as the **"TELECOMMUNICATIONS WORKSITE SAFETY AND MANAGEMENT FOR TELECOMMUNICATIONS-RELATED WORKS IN VALENZUELA CITY ORDINANCE"**.

SECTION 2. DECLARATION OF POLICY, SCOPE, NON-PREEMPTION

- a. Policy.** It is the policy of the City to protect pedestrians and motorists, promote safe and orderly movement of traffic, and ensure the safe conduct and prompt restoration of public rights-of-way affected by telecommunications-related works within Valenzuela City.
- b. Scope.** This Ordinance regulates only the worksite safety, traffic management, public protection, and identification aspects of telecommunications-related works conducted on or affecting
1. City/local roads, sidewalks, and other city-controlled public rights-of-way; and
 2. National roads and bridges located within Valenzuela City, subject to DPWH authority and regulations and the coordination and deconfliction provision of this Ordinance.
- c. Non-preemption.** Nothing herein shall be constructed as regulating telecommunications services, subscriber rates, spectrum, network operations, franchising, or other matters lodged by law national agencies. This Ordinance shall be implemented in a manner consistent with national statutes and State policy.

SECTION 3. COVERAGE. This Ordinance applies to all persons or entities performing Covered Works within Valenzuela City, including telecommunications companies and their contractors/subcontractor, when conducting installation, maintenance, repair, construction, excavation, restoration, or similar activities on or affecting any public right-of-way.



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

Page No. 3
Ordinance No. 1340
Series of 2026.

SECTION 4. DEFINITION OF TERMS. – For purposes of this Ordinance:

- a) **Telecommunications Company** - Any person or entity providing telecommunications or internet services to the public and undertaking Covered Works within the City.
- b) **Contractor/Sub-contractor** – Any person or entity engaged by a telecommunications company to perform Covered Works.
- c) **Covered Works**. Installation, construction, excavation, trenching, boring, pole erection, cabling/fiber laying, equipment installation, repair, maintenance, restoration, or similar activities that occur on a public right-of-way or materially affect traffic or pedestrian flow.
- d) **Work Site/Work Zone**. The area where Covered Works are performed, including approach areas where warning signs and devices must be placed.
- e) **Warning Signs/Traffic Control Devices**. Signs, cones, barricades, barriers, flashing lamps, lighting, and similar devices used to warn, channel, or control motorists and pedestrians.
- f) **Traffic Controller/Flagman**. A trained person assigned to manage traffic and/or pedestrian movement at or near a Work Site, using a STOP/SLOW paddle or flag and wearing high-visibility attire.
- g) **Work Vehicle/Company Vehicle**. Any motor vehicle used in the performance of Covered Works, whether owned, leased, or operated by the telecommunications company or its contractor/subcontractor.
- h) **Proper Uniform/Company Issued Work Attire**. A uniform, vest, shirt, jacket, or similar work attire identifying the telecommunications company or contractor/subcontractor, without prejudice to required personal protective equipment.
- i) **Worker Identification Card (Worker ID)**. A card issued by the telecommunications company or its contractor/subcontractor containing at minimum: (1) a recent photograph of the worker; and (2) the name of the company/contractor/subcontractor deploying the worker to the Work Site.
- j) **Barangay Work Clearance (Coordination/Notice)**. A ministerial, non-business, safety-and-traffic coordination clearance issued by the barangay Covered Works affecting barangay/local



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

Page No. 4
Ordinance No. 1340
Series of 2026.

roads, sidewalks, or pedestrian/traffic flow, based on submission of minimum information requirements.

- k) **Traffic Clearance** – refers to a document or certificate issued by the Traffic Management Division to the accredited contractors of Public Utilities, DPWH, City Engineer's Office, the Metro Manila Development Authority (MMDA), or such other duly authorized offices prior to the commencement of breaking, digging, excavation or any kind of upgrading and maintenance activity, and aerial or underground installation of cable and other utility facilities that will obstruct/occupy roads and/or drainages for the purpose of ensuring the smooth flow of traffic while the aforesaid activities are being undertaken.

SECTION 5. GENERAL OBLIGATION: SAFETY WORKSITES AND PUBLIC PROTECTION. All Covered Works shall be conducted with due regard to public safety and convenience. The responsible telecommunications company and/or contractor shall ensure the Work Site is properly identified, protected, and when necessary, lighted, and that disturbed areas are restored after completion.

SECTION 6. MANDATORY REQUIREMENTS.

6.1 Traffic Clearance. A Traffic Clearance is required of all contractors engaged in road-related projects within the City of Valenzuela, including activities such as digging, excavation, trenching, cable laying, ground clearing, and similar works and shall faithfully comply with all the terms and conditions contained therein.

6.2 Vehicle Identification.

- All Work Vehicles deployed to a Work Site shall display conspicuous identification of the responsible entity (telecommunications company or contractor), including the company name, on both sides of the vehicle and on the rear when practicable.
- identification may be painted, decal, magnetic sign, or other durable marking, provided it is visible and readable at a reasonable distance.

6.3 Mandatory Wearing of Proper Uniform and Visible Worker ID.

- All personnel deployed at the Work Site shall wear Proper Uniform/Company-Issued Work Attire identifying the responsible telecommunications company or contractor/subcontractor;



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

Page No. 5
Ordinance No. 1340
Series of 2026.

- b. All personnel shall wear and visibly display their Worker ID at all times while performing Covered Works on or affecting public rights-of-way;
- c. This requirement shall be implemented in a manner that does not compromise required safety PPE and visibility requirements.

6.4 Advance Warning Signage and Work Zone Devices.

- a. Prior to commencement of Covered Works, the responsible entity shall install and maintain appropriate warning signs and traffic control devices sufficient to:
 - 1. alert approaching motorists and pedestrians;
 - 2. guide detours, lane shifts, or pedestrian diversions; and
 - 3. protect excavations, equipment, and workers.
- b. At night, or low visibility conditions, the Work Site shall be provided with adequate illumination and/or flashing warning lamps.

6.5 Flagmen/Traffic Controllers (Objective Triggers). At least one (1) flagman shall be deployed when any of the following occurs:

- a. partial or full lane closure;
- b. excavation/trenching within or immediately adjacent to a travel lane;
- c. obstruction of a sidewalk requiring pedestrian diversion;
- d. movement of equipment across a travel lane;
- e. any condition that, in the judgment of the Traffic Management Office (TMO), creates a material traffic or pedestrian safety risk. Flagmen shall wear high-visibility attire and use standard STOP/SLOW paddles or flags.

665 Minimum Housekeeping and Public Safety.

- a. Tools, cables, and materials shall not be left unattended in a manner that creates hazards;
- b. Open excavations shall be properly barricaded and, when necessary, covered or plated;



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

Page No. 6
Ordinance No. 1340
Series of 2026.

- c. Debris shall be removed and the site restored without undue delay

6.7 Work Coordination Documents (On-Site Presentation).

- a. Responsible entity shall keep at the Work Site and present upon request by authorized City/barangay enforcers:
1. The service order/work order/job order or equivalent written authority identifying the responsible telecommunications company/contractor/subcontractor, the covered location, and the period of work; and
 2. The Barangay Work Clearance (Coordination/Notice), when required.
- b. The documents shall be required solely for identification, safety, traffic condition, and incident response, and shall not be constructed as regulation of telecommunications services or network operations.

SECTION 7. EXCAVATION AND RESTORATION; PRIOR APPROVAL; 10-DAY NOTICE; REPAIR AT DOUBLE EXPENSE.

- a. **Prior Approval.** For the purpose of erecting and maintaining poles or other supports, or laying and maintaining underground wires, cables, or other conductors, it shall be lawful for the responsible entity, with the proper approval of the DPWH or the local government unit concerned, as may be appropriate, to make excavations or lay conduits in any of the public places, roads, highways, streets, lanes, alleys, avenues, sidewalks, or bridges within Valenzuela City.
- b. **Restoration.** Any public place, road, highway, street lane, alley, avenue, sidewalk, or bridge disturbed, altered, or changed by reason of Covered Works shall be repaired and replaced in a workmanlike manner, in accordance with the standards set by the DPWH or the LGU concerned, as may be appropriate.
- c. **10-day Notice, repair at double expense.** Should the responsible entity, after ten (10)-day notice from the appropriate authority (DPWH or the LGU concerned, as may be appropriate), fail, refuse, or neglect to repair, replace any portion disturbed, altered, or changed by reason of Covered Works, then the DPWH or the LGU concerned

[Handwritten signature]



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

[Handwritten signature]
[Handwritten signature]

Page No. 7
Ordinance No. 1340
Series of 2026.

shall have the right to have the same repaired and placed in good order and condition at double expense to be charged against the responsible entity.

SECTION 8. ENFORCEMENT AUTHORITIES; INSPECTIONS; DOCUMENTATION.

- a. The Traffic Management Office (TMO) and Task Force Disiplina (TFD), with assistance from the City Engineer's Office and the Philippine National Police (PNP), shall enforce this Ordinance;
- b. Authorized enforcers may conduct on-site inspections of Work Sites, Work Vehicles, and visible compliance by personnel (Uniform and Worker ID) and shall document violations through photographs and/or body-worn camera footage when available, and record the same in logbook;
- c. For works on national roads, City enforcers shall coordinate with DPWH and comply with DPWH-issued directives consistent with national law.

SECTION 9. NOTICE OF VIOLATION (NOV); COMPLIANCE ORDER; STOP-WORK ORDER (SWO).

- a. **NOV and Compliance Order.** For violations that do not pose an imminent hazard, enforcers shall issue a written Notice of Violation (NOV) stating the observed facts, the specific provisions violated, and the corrective actions required, and shall direct compliance within a reasonable time.
- b. **SWO for imminent hazard.** When a violation creates an imminent danger to the public safety or a serious obstruction to traffic or pedestrian movement (including, but not limited to, unbarricaded excavation in a travel lane; lane closure without any warning devices; total sidewalk blockage without safe pedestrian diversion), the TMD/TFD may issue a Stop-Work Order (SWO) effective immediately until minimum safety compliance is achieved.
- c. **Lifting of SWO.** The SWO shall be lifted upon verified compliance.

[Handwritten signature]

[Handwritten signature]

[Handwritten signature]

[Handwritten signature]

[Handwritten signature]

[Handwritten signature]



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

Page No. 8
Ordinance No. 1340
Series of 2026.

SECTION 10. EFFECTS OF LACK OF TRAFFIC CLEARANCE. The lack of Traffic Clearance already constitutes an automatic violation of the Ordinance with respect to a company or individual not covered by the exemption or the loss of exemption automatically by a company otherwise entitled thereto.

SECTION 11. ADMINISTRATIVE FINES AND PENALTIES (ON-SITE PERSONS).

- a. Schedules of fines (per Work Site, per hour of violation):
 1. First Offense : ₱500.00
 2. Second Offense : ₱1,000.00
 3. Third Offense : ₱1,500.00
- b. Fines may be imposed upon the responsible on-site supervisor and/or the entity, as warranted by the circumstances;
- c. Community service may be offered only as an optional alternative when authorized under City programs and subject to written agreement, as may be provided in the IRR.

SECTION 12. ADMINISTRATIVE FINES AND PENALTIES (COMPANIES/CONTRACTORS/SUBCONTRACTORS).

- a. Corporate fine (per Work Site, per day of violation):
 1. First Offense: ₱10,000.00;
 2. Second Offense: ₱20,000.00
 3. Third Offense: ₱30,000.00
- b. City-issued permit sanctions (City-controlled rights-of-way), For repeated or willful non-compliance on city/local roads or city-controlled rights-of-way, the City may suspend or revoke City-issued excavation/road occupancy/work permits for the specific project/site, subject to due process under Section 14;
- c. National road works (DPWH-issued permits). For repeated or willful non-compliance on national roads, the City may:
 1. Issue SWOs for imminent hazards under Section 10;
 2. Impose the fines under this Ordinance; and

By [Signature]



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

[Signature]
[Signature]

Page No. 9
Ordinance No. 1340
Series of 2026.

[Signature]

3. Recommend to DPWH the suspension/cancellation of DPWH permits/clearances, with submission of documentation.

SECTION 13. IMPOUNDING/TEMPORARY CUSTODY (LIMITED; HAZARD ABATEMENT; SAFEGUARDS).

- a. **General Rule.** Enforcement shall prioritize compliance, NOV's, SWOs, and administrative fines. No confiscation of tools/materials shall be made solely to punish;
- b. **Limited Exception.** Temporary impounding of a Work Vehicle or temporary custody of a specific item may be done only when reasonably necessary to abate an imminent hazard or remove an obstruction to traffic/pedestrian flow, and only upon:
 1. Written order stating the factual grounds;
 2. Inventory and photographs;
 3. Issuance of an official receipt to the person/entity in possession;
 4. Storage in a designated impounding area; and
 5. Release upon compliance and payment of lawful fees, subject to Section 14.

[Signature]

SECTION 14. ADMINISTRATIVE REMEDIES; DUE PROCESS.

- a. Any person/entity cited may file a written protest/appeal within five (5) working days from receipt of the NOV, SWO, fine assessment, or impounding order, before the designated Hearing Officer/Office as may be provided by the IRR;
- b. The City shall resolve the protest within a reasonable period and shall provide the protestant an opportunity to be heard;
- c. Payment under protest shall be allowed to secure release of an impounded vehicle/item, without prejudice to refund/adjustment of the protest is granted.

[Signature]

SECTION 15. IMPLEMENTING RULES AND REGULATIONS (IRR). The City Mayor, through the City Engineer's Office, and TMD, in consultation with the City Legal Office, shall promulgate the IRR within sixty (60) days from effectivity. The IRR shall:

[Signature] *[Signature]* *[Signature]* *[Signature]* *[Signature]*



Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

SANGGUNIANG PANLUNGSOD

Page No. 10
Ordinance No. 1340
Series of 2026.

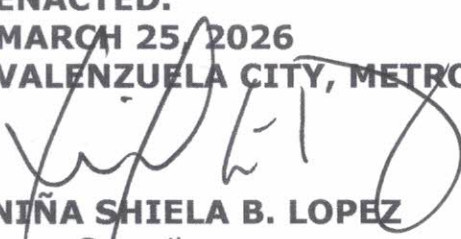
- a. Set minimum standards for signage, distance, lighting, and flagman deployment;
- b. Establish inspection and documentation protocols, including DPWH coordination steps for national road works;
- c. Provide the hearing/protest process; and
- d. Not expand penalties or create a new prohibited acts beyond this Ordinance.

SECTION 16. SEPARABILITY CLAUSE. If any provision of this Ordinance is declared invalid the remaining provisions not affected shall remain in full force and effect.

SECTION 17. REPEALING CLAUSE. All ordinances, resolutions, rules and regulations, or parts thereof inconsistent herewith are repealed or modified accordingly.

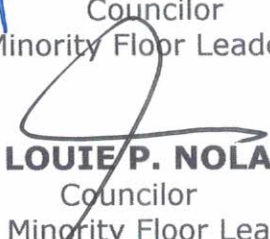
SECTION 18. EFFECTIVITY. This Ordinance shall take effect fifteen (15) days after its publication in a newspaper of general circulation, as required by law.

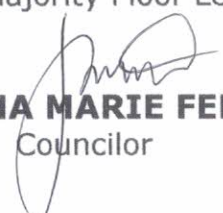
ENACTED.
MARCH 25, 2026
VALENZUELA CITY, METROPOLITAN MANILA.


HON. NIÑA SHIELA B. LOPEZ
Councilor
Majority Floor Leader


HON. JOSEPH WILLIAM D. LEE
Councilor
Minority Floor Leader


HON. WALTER MAGNUM D. DELA CRUZ
Councilor
Asst. Majority Floor Leader


HON. LOUIE P. NOLASCO
Councilor
Asst. Minority Floor Leader


HON. CRISTINA MARIE FELICIANO-TAN
Councilor


HON. LORENA C. NATIVIDAD-BORJA
Councilor











Republic of the Philippines
CITY OF VALENZUELA
Metropolitan Manila

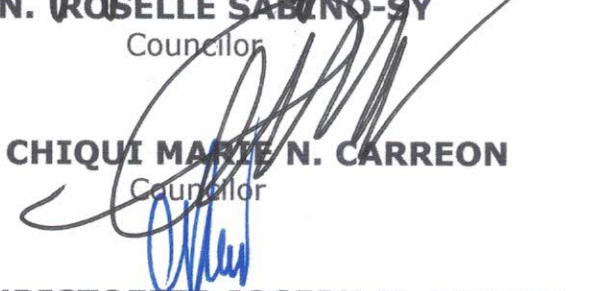
SANGGUNIANG PANLUNGSOD

Page No. 11
Ordinance No. 1340
Series of 2026.

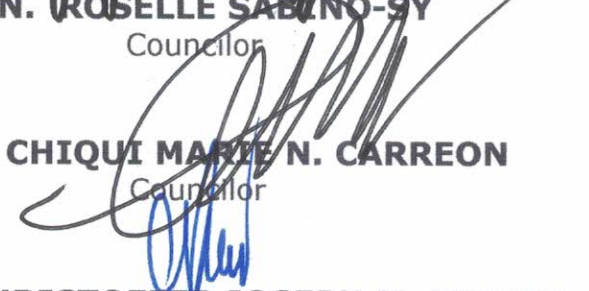

HON. RICHARD C. ENRIQUEZ
Councilor

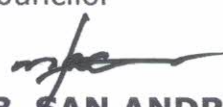

HON. ROSELLE SABINO-SY
Councilor


HON. KISHA COLEEN R. ANCHETA
Councilor


HON. CHIQUI MARIE N. CARREON
Councilor

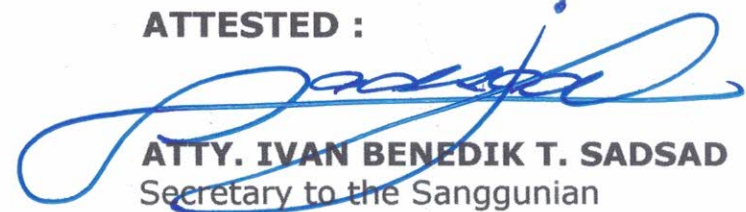

HON. EXEQUIEL D. SERRANO
Councilor


HON. CHRISTOFFER JOSEPH M. PINEDA
Councilor

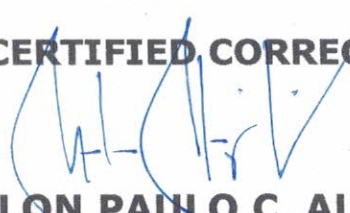

HON. MARIO B. SAN ANDRES
Councilor
(President, League of Barangays)


HON. JAIRUS JEOFRI P. ESPLANA
Councilor
(President, Sangguniang Kabataan Federation)

ATTESTED :


ATTY. IVAN BENEDIK T. SADSAD
Secretary to the Sanggunian

CERTIFIED CORRECT:


HON. MARLON PAULO C. ALEJANDRINO
City Vice Mayor
Presiding Officer

APPROVED:


HON. WESLIE T. GATCHALIAN
City Mayor
Date signed : 20 APR 2026